

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Miriam Lynch	Team: Squad #09	CCRB Case #: 201707096	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Monday, 08/21/2017 1:00 AM	Location of Incident: Rockaway Parkway and Belt Parkway	18 Mo. SOL 2/21/2019	Precinct: 69		
Date/Time CV Reported Mon, 08/21/2017 1:20 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 08/28/2017 4:25 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Nicklas Yardan	25155	946577	069 PCT
2. POM Louis Villegas	22408	953533	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Nicklas Yardan	Abuse: Police Officer Nicklas Yardan stopped § 87(2)(b)	A . Unsubstantiated
B . POM Louis Villegas	Abuse: Police Officer Louis Villegas stopped § 87(2)(b)	B . Unsubstantiated
C . POM Louis Villegas	Abuse: Police Officer Louis Villegas frisked § 87(2)(b)	C . Substantiated
D . POM Louis Villegas	Abuse: Police Officer Louis Villegas searched § 87(2)(b)	D . Unsubstantiated
E . POM Louis Villegas	Discourtesy: Police Officer Louis Villegas spoke discourteously to § 87(2)(b)	E . Unsubstantiated
F . POM Louis Villegas	Abuse: Police Officer Louis Villegas threatened § 87(2)(b) with the use of force.	F . Unsubstantiated
G . POM Nicklas Yardan	Discourtesy: Police Officer Nicklas Yardan spoke discourteously to § 87(2)(b)	G . Unsubstantiated
H . POM Nicklas Yardan	Off. Language: Police Officer Nicklas Yardan made remarks to § 87(2)(b) based upon the § 87(2)(b)'s perceived sexual orientation.	H . Unsubstantiated
I . POM Louis Villegas	Abuse: Police Officer Louis Villegas refused to provide his shield number to § 87(2)(b)	I . Unsubstantiated
J . POM Louis Villegas	Discourtesy: Police Officer Louis Villegas acted discourteously toward § 87(2)(b)	J . Unsubstantiated

Case Summary

On August 21, 2017, at approximately 1:00 a.m. § 87(2)(b) was at Rockaway Parkway near where it comes to a dead end, in the vicinity of the Shore Parkway in Brooklyn. He encountered two individuals engaged in a lewd action, and took out his cell phone. He was then stopped by PO Louis Villegas and PO Nicklas Yardan, both of the 69th Precinct (**Allegations A and B**). He was handcuffed and then frisked and allegedly searched by PO Villegas (**Allegations C and D**).

PO Villegas allegedly asked him what “the fuck” he was doing, told him to “shut the fuck up” or else he would “get hurt.” He also allegedly called § 87(2)(b) a “pervert,” a “freak,” and a “super freak” (**Allegations E and F**). PO Yardan, as he was allegedly putting § 87(2)(b)'s information into the DASlite system, allegedly told the operator, “We’ve got a super freak here by the name of § 87(2)(b) called § 87(2)(b) a “gay psycho” under his breath, and told the other individuals present, “That’s the freak who was watching you guys fucking” (**Allegations G and H**).

§ 87(2)(b) was released without being issued a summons, being injured, or being arrested. When he requested PO Villegas’ shield number and attempted to take a picture of it, PO Villegas allegedly turned away from § 87(2)(b) (**Allegation I**). As the officers were driving away, PO Villegas allegedly raised his middle finger and displayed it to § 87(2)(b) (**Allegation J**).

§ 87(2)(g)

Video footage was not available for this incident.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation both over the phone and during his in-person interview (Board Reviews 1 and 2)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
- On November 15, 2017, a FOIL request for a notice of claim was submitted to the New York City Office of the Comptroller. Results will be added to the case file upon receipt (Board Review 4).

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b) (Board Review 5).
- PO Villegas has been a member of service for five years. Four prior CCRB complaints, with five allegations, have been filed against him (Board Review 6).
 - Two of these cases, 201507197 and 201700889, included refusal to provide name and shield allegations that were closed as unsubstantiated.
 - § 87(2)(g)
[REDACTED]
- PO Yardan has been a member of service for nine years. Eleven previous CCRB complaints, with 27 total allegations, have been filed against him. § 87(4-b) § 87(2)(g)
[REDACTED] No FADO allegations have been substantiated against him (Board Review 6).

○ § 87(2)(g)

Potential Issues

- The two other individuals present could not be located by the investigation.

Findings and Recommendations

Allegation A—Abuse of Authority: Police Officer Louis Villegas stopped § 87(2)(b)

Allegation B—Abuse of Authority: Police Officer Nicklas Yardan stopped § 87(2)(b)

It is undisputed that PO Villegas and PO Yardan stopped § 87(2)(b) § 87(2)(g)

§ 87(2)(b) stated that at the time and place of the incident, he was about to go running when he stopped to urinate. When he had entirely stopped urinating, he saw two individuals engaged in a lewd action in public. He stated that he pulled out his cell phone to call 911 and report them when PO Villegas and PO Yardan appeared, and stopped him. He stated that he did not at any time bend over or crouch before officers approached him (Board Review 1).

PO Yardan and PO Villegas both stated that § 87(2)(b) was lying underneath under the muffler of a car when they first saw him. Neither PO Yardan nor PO Villegas ever remembered § 87(2)(b) telling them that he had stopped to urinate (Board Reviews 6 and 7).

PO Villegas stated that he could not see what § 87(2)(b) was doing when the officers first approached him, and he could not see if § 87(2)(b) was carrying anything. He stated that there was a condition of car break-ins, and the theft of car parts in the precinct, and that § 87(2)(b)'s placement under the vehicle, and the time of night suggested to him that he was attempting to commit one of these crimes. He stated that he ordered § 87(2)(b) out from under the vehicle for approximately two minutes before § 87(2)(b) complied, and that after § 87(2)(b) § 87(2)(b) complied, he immediately tried to leave, and PO Villegas handcuffed him (Board Review 6).

PO Yardan also stated that § 87(2)(b) was hiding all of the way under a vehicle when the officers first approached. He stated that he and PO Villegas ordered § 87(2)(b) out from under the vehicle multiple times. He confirmed the car break-in condition in the command. He also stated that § 87(2)(b) was belligerent with officers, yelling at them at the time that he was stopped (Board Review 7).

The UF-250, completed by PO Villegas, also denoted that § 87(2)(b) was suspected of breaking into the car (Board Review 8).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegations A and B** be closed as **unsubstantiated**.

Allegation C—Abuse of Authority: Police Officer Louis Villegas frisked § 87(2)(b)

It is undisputed that PO Villegas frisked § 87(2)(b) and it is undisputed that he did so just after he stopped § 87(2)(b)

§ 87(2)(b) stated that he was carrying only his wallet, house keys, and cell phone in his pockets when he was frisked. He stated that he was wearing a pair of dark blue basketball shorts, a black T-shirt, and pink running shoes (Board Review 1).

PO Villegas stated that he frisked § 87(2)(b) because he thought that he might be carrying tools, as he suspected him of breaking into a vehicle. He also stated that § 87(2)(b) was wearing a baggy shirt, and that he may have been concealing a tool in the shirt. The baggy shirt was the only visual indication that PO Villegas had that § 87(2)(b) was potentially concealing any sort of tools. The only bulge that he found was unearthed by the frisk, and it was § 87(2)(b)'s wallet. PO Yardan could not remember any reason to believe that § 87(2)(b) was armed other than that he was stopped at approximately 1:00 a.m. (Board Reviews 6 and 7).

The UF-250 indicated only that PO Villegas frisked § 87(2)(b) for officer safety, and did not provide any additional reasons (Board Review 8).

Per Patrol Guide Procedure 212-11, officers are permitted to frisk individuals if they have reasonable suspicion that the person is armed. Factors that may contribute to this suspicion include visible indications on someone's person, a statement from a subject or witness that someone is armed, or additional suspicion of a violent crime, such as robbery, assault with a deadly weapon, or rape (Board Review 9).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **substantiated**.

Allegation D—Abuse of Authority: Police Officer Louis Villegas searched § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) stated that as PO Villegas was searching him, PO Villegas reached into his pockets (Board Review 7). PO Villegas and PO Yardan both denied that § 87(2)(b) was searched by PO Villegas (Board Reviews 6 and 7).

The UF-250 prepared for this incident indicated that § 87(2)(b) was not searched (Board Review 8).

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **unsubstantiated**.

Allegation E—Discourtesy: Police Officer Louis Villegas spoke discourteously to § 87(2)(b)

Allegation F—Abuse of Authority: Police Officer Louis Villegas threatened to use force against § 87(2)(b)

Allegation G—Discourtesy: Police Officer Nicklas Yardan spoke discourteously to § 87(2)(b)

Allegation H—Offensive Language: Police Officer Nicklas Yardan made remarks based upon § 87(2)(b)'s perceived sexual orientation.

Allegation I—Abuse of Authority: Police Officer Louis Villegas refused to provide his shield number to § 87(2)(b)

Allegation J—Abuse of Authority: Police Officer Louis Villegas acted discourteously towards § 87(2)(b)

It is undisputed that § 87(2)(b) was upset when he was stopped, and it is undisputed that he asked for the officers' shield numbers when he was initially stopped. § 87(2)(g)

§ 87(2)(b) stated that when he was initially stopped and frisked, PO Villegas told him to shut “the fuck” up, and said that he “would get hurt” if he did not stop talking. He allegedly called § 87(2)(b) a “freak,” a “pervert,” and a “super freak.” PO Yardan stated over the radio, “We’ve got a super freak by the name of § 87(2)(b) called him a “gay psycho” under his breath, and said, “That’s the freak who was watching you guys fucking.” After PO Villegas released him from handcuffs, § 87(2)(b) asked for the officers' shield numbers. He stated that PO Yardan allowed him to take a picture of his shield, but that PO Villegas turned his body away. § 87(2)(b) stated that when PO Villegas was driving away, he extended his middle finger, and displayed it to § 87(2)(b) (Board Review 1).

The photo of PO Villegas that § 87(2)(b) provided was very blurry, and did not provide insight into whether PO Villegas deliberately obstructed his shield (Board Review 11).

Each time that § 87(2)(b) was questioned, either by IAB over the phone, by the CCRB over the phone, and by the CCRB in person, he gave a somewhat different account of the exact discourteous statements that the officers used. When asked about the discrepancy, he stated that he was anxious and nervous during the incident, which affected his recollection of what was said (Board Review 1 and 2).

PO Villegas denied making these statements, as well as calling § 87(2)(b) a “freak” in any capacity. He stated that when § 87(2)(b) requested his name and shield number, he provided it, and that he did not show his raised middle finger to § 87(2)(b). PO Yardan likewise denied making these statements. He stated that profanity was not used during the incident, and he did not remember PO Villegas turning his body away when asked for his shield number or displaying his middle finger (Board Reviews 6 and 7).

The investigation could not identify the two other civilians who were present at the time, and there was no footage of the officers. § 87(2)(g)

§ 87(2)(g)

it is recommended that Allegations E, F, G, H, I, and J be closed as **unsubstantiated**.

Squad #9

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date